

**2025 Fall Annual Town Meeting
Kennedy Middle School Auditorium
October 30, 2025, Fourth Session**

The fourth session of the 2025 Fall Town Meeting was called to order at 7:47 PM by Town Moderator, Jeffrey Alderson, who declared a quorum present. The Moderator welcomed residents, taxpayers, town officials, Town Meeting Members and interested parties to the fourth session of 2025 Fall Annual Town Meeting. The Moderator asked that all recently elected or appointed members of Town Meeting stand to take the oath of office. No one rose.

The Moderator asked the audience to stand for the Pledge of Allegiance and a moment of silence in recognition of John R. Culkin.

The Moderator introduced the officials present for the meeting: Andrew Ghobrial, Town Clerk; Todd Gillenwater, Finance Committee Chair; Cody Jacobs, Finance Committee Secretary; Karis North, Town Counsel; James Errickson, Town Administrator; and Bruce Evans, Select Board Chair. Maya Allen will operate the slides and Jeff Horan, a representative from Option Technologies, will operate the electronic voting system.

ARTICLE 25: Amend Zoning Bylaws: Accessory Dwelling Unit (ADU)

To see if the Town will vote to amend the Natick Zoning Bylaws by amending §III-M Accessory Dwelling Unit (ADU); amending Section 200 – Definitions Accessory Dwelling Units; or otherwise act thereon

FINANCE COMMITTEE RECOMMENDATION

The Finance Committee took the following action:	RECOMMENDATION:	No Recommendation
	QUANTUM OF VOTE:	6-5-0
	DATE VOTED:	10/7/2025

MOTION (Requires a 2/3rds Vote)

Moved by Terri Evans, seconded by Rich Sidney that the Town vote to amend Section 200 – Definitions of the Natick Zoning Bylaw, by deleting all references to “Principal One-Family Dwelling” and replacing with “Principal Residential Dwelling” in all occurrences for the Definitions of Accessory Dwelling Unit (ADU), Gross Floor Area, to read as follows:

Accessory Dwelling Unit (ADU): per MGL c. 40A §1A, an Accessory Dwelling Unit (ADU) is a self-contained Residential Dwelling Unit, inclusive of sleeping, cooking, and sanitary facilities on the same lot as a Principal Residential Dwelling, subject to otherwise applicable dimensional and parking requirements, that: (i) maintains a separate entrance, either directly from the outside or through an entry hall or corridor shared with the Principal Residential Dwelling sufficient to meet the requirements of the state building code for safe egress; (ii) is not larger in floor area than half (1/2) the floor area of the Principal Residential Dwelling or nine-hundred (900) square feet, whichever is smaller; and (iii) is subject to such additional restrictions as may be imposed by a municipality,

including, but not limited to, additional size restrictions and restrictions or prohibitions on Short-term Rental of ADU, as defined in section 1 of chapter 64G, as further defined herein; provided, however, that no municipality shall unreasonably restrict the creation or rental of an accessory dwelling unit that is not a Short-term Rental. (Art. 20, Fall ATM, 10/24/2024)

Gross Floor Area: The sum of the areas of all stories of a building measured from the exterior faces of the exterior walls or from the centerline of walls separating two buildings, including any floor area below grade when usable for residential, office, business, storage, industrial, or other purposes, but excluding any area used exclusively for heating, air conditioning or other mechanical equipment which services the building, and excluding floor area intended or designed for off-street parking. The Gross Floor Area of a Principal Residential Dwelling or an Accessory Dwelling Unit (ADU), shall be calculated per 760 CMR 71.00, as amended. ~ (Art.28, Spring ATM, 05/06/2025)

Move that the Town vote to amend Section 200 – Definitions of the Natick Zoning Bylaw, by deleting the second sentence “A Family Suite was defined as an accessory dwelling unit, in a principal One-Family Dwelling, for occupancy by a resident who is related by blood, marriage, or adoption to the owner of the principal Residential Dwelling.” and replacing with a new sentence “A Family Suite was defined as an accessory dwelling unit, in a Principal One-Family Dwelling for occupancy by a resident who is related by blood, marriage, or adoption to the owner of the Principal Residential Dwelling.”, to read as follows:

Family Suite – See Accessory Dwelling Unit (ADU). Prior to February 3, 2025, Family Suites were permitting in the Single Residential (RS) Zoning Districts (RSA, RSB, and RSC) by special permit from the Zoning Board of Appeals (ZBA). A Family Suite was defined as an accessory dwelling unit, in a Principal Residential Dwelling for occupancy by a resident who is related by blood, marriage, or adoption to the owner of the Principal Residential Dwelling. (Art. 20, Fall ATM, 10/24/2024)

And further move that the Town vote to amend Section 200 – Definitions of the Natick Zoning Bylaw, by deleting the definition “Dwelling, Principal One-Family” and replacing with a new definition “Dwelling, Principal Residential”, to read as follows:

Dwelling, Principal Residential: For the purposes of § III-M Accessory Dwelling Units (ADU), the Principal Residential Dwelling will be the primary use, while the ADU will be the accessory use on the Lot. The ADU may be attached or detached to the Principle Residential Dwelling. (Art. 20, Fall ATM, 10/24/2024)

And further move that the Town vote to amend Section 200 – Definitions of the Natick Zoning Bylaw, by deleting the definition “Principal One-Family Dwelling” and replacing with a new definition “Principal Residential Dwelling”, to read as follows:

Principal Residential Dwelling: See Dwelling, Principal Residential (Art. 20, Fall ATM, 10/24/2024)

And further move that the Town vote to amend § III-M Accessory Dwelling Unit, by amending §III-M.1, III-M.2.d, III-M.3.a, III-M.3.b, III-M.3.e, III-M.4.a.i, III-M.4.a.ii, III-M.4.a.iii, III-M.4.b.i, III-M.4.c.i, III-M.4.d.i, III-M.5.c, III-M.5.e, and III-M.5.g by deleting “Principal One-Family Dwelling” and replacing with “Principal Residential Dwelling” in all occurrences; amending §III-M.3. by deleting §III-M.3.c in its entirety and renumbering the remainder of the subsection (“d.” will be the new “c.”, “e” will be the new “d.”, and “f.” will be the new “e.”); deleting § III-M.5.d in its entirety, and renumbering the remainder of the subsection (“e.” will be the new “d.”, “f.” will be the new “e.”, “g.” will be the new “f.”, and “h.” will be the new “g.”); amending Section III-M.5.e by deleting the words “a minimum of” that occur after “An ADU shall provide” and before the words “one (1) off-street parking space on the Lot when located a half (1/2) mile or more from a commuter rail station.”, to read as follows:

Section III-M. Accessory Dwelling Unit

1. Purpose and Intent

An Accessory Dwelling Unit (ADU) is an alternative type of housing that allows Natick to expand and diversify its housing supply options without requiring additional land development. The design and implementation of an ADU is expected to fit on a Lot, with the Principal Residential Dwelling.

2. Massachusetts General Law (MGL)

- a. ADUs are permitted As of Right per Massachusetts General Laws (MGL), Chapter (c) 40A, § 3.
- b. The Town has established §III-M of these Zoning Bylaws to provide guidance and to reasonably regulate the construction of ADUs within single-family zoning districts.
- c. No ADU unit may be utilized as Short-term Rental.
- d. The gross floor area of the Principal Residential Dwelling or the ADU outlined in § III-M of these Zoning Bylaws shall be calculated per 760 CMR 71.00, as amended. (Art. 20, Spring ATM, 05.06.2025)

3. Applicability and Requirements

- a. In order to qualify for an As of Right ADU, the Principal Residential Dwelling and the Lot shall:
 - i. conform to the maximum Building Coverage of the respective Zoning District, per § IV-B Intensity Use Regulations of these Zoning Bylaws; and
 - ii. be the only residential Dwelling Unit on the Lot prior to construction of the ADU.
- b. Neither the Principal Residential Dwelling nor the ADU shall be used as a Short-term Rental.
- c. Where there are two (2) or more ADUs on a Lot. One (1) of the ADUs shall be deed restricted as affordable per and subject to § V-J Inclusionary Housing of these Zoning Bylaws.
- d. The ADU and the Principal Residential Dwelling shall remain on the same Lot and shall not be divided onto two (2) separate lots.
- e. No ADU unit may be separately sold as a condominium, or otherwise.

4. Permitting Regulations and Permit Review Authority

a. Building Permit Review – Building Permit Application

The Building Commissioner shall be the permit granting authority for the creation of the following types of ADUs. Such review shall be conducted concurrently as part of a Building Permit application.

- i. A single ADU that is located entirely within the Principal Residential Dwelling or within an existing attached garage, with no exterior increases in square footage;
- ii. A single ADU located in an existing detached garage that is greater than ten (10) feet from the Principal Residential Dwelling. Detached garages less than ten (10) feet from the Principal Residential Dwelling shall meet all Building Code requirements;
- iii. A single ADU to be located within a Principal Residential Dwelling at the time of construction of the Principal Residential Dwelling; or
- iv. The conversion of a Family Suite to an ADU, unless such conversion requires relief from the Zoning Board of Appeals (ZBA), and then either section c. or d. shall apply, depending on the facts and circumstances. Consultation with Town staff is encouraged before any conversion application is filed.

b. ADU Site Review (As of Right)

The Building Commissioner shall be the permit granting authority for the creation of the following types of ADUs. ADU Site Review shall be As of Right and limited to the bulk, height, scale, and placement of a single ADU on the Lot.

- i. A single detached ADU on a Lot located within the Allowable Building Envelope and greater than ten (10) feet from the Principal Residential Dwelling;
- ii. The construction of a single ADU on a Lot that is deficient only in Lot Area and Frontage; or
- iii. The construction of an addition for a single ADU that does not require relief from the ZBA.

c. ADU – Pre-existing Non-conforming Lots (As of Right)

The ZBA shall be the permit granting authority for ADU Site Review, which is an As of Right (majority-vote) review. The review of the following ADUs shall be limited to the bulk, height, scale, and placement of a single ADU on the Lot.

- i. The expansion of an existing Principal Residential Dwelling or existing building (that is greater than ten (10) feet in distance from the Principal Residential Dwelling) that is deficient in Intensity Regulations per §IV-B of these Zoning Bylaws; or
- ii. The placement or addition of an ADU requires a Section 6 Finding beyond relief associated with Lot Area and Lot Frontage.

d. ADU Special Permit

The ZBA shall be the Special Permit Granting Authority (SPGA) for the following Special Permits, which shall require a super-majority vote:

- i. The creation of two (2) or more ADU per Principal Residential Dwelling or Lot, which will require a super-majority vote.
- ii. A Building proposed to exceed the allowable Lot Coverage or other dimensional requirements per § IV-B Intensity Regulations by Zoning District, with the exception of Lot Area and Lot Frontage. The Special Permit shall be required for the Building, not the ADU as a use.

5. Design Requirements and Findings

The permit granting authority or SPGA shall review an ADU application for compliance with the following Findings.

- a. The ADU shall be located in the Allowable Building Envelope of a Lot.
- b. The Lot shall remain conforming to Building Coverage per §IV-B of these Zoning Bylaws for the respective Zoning District after the construction of an ADU.
- c. An ADU detached from the Principal Residential Dwelling shall be a minimum of ten (10) feet from another Structure on the Lot, per the State Building Code.
- d. A detached ADU shall not be located between a roadway and the designated frontage of the Principal Residential Dwelling.
- e. An ADU shall provide one (1) off-street parking space on the Lot when located a half (1/2) mile or more from a commuter rail station.
- f. When an ADU has a separate exterior entrance from the Principal Residential Dwelling or is a separate Building, the ADU shall be accessible from a path or walkway.
- g. The ADU is located on the Lot so it does not impede vehicular access and circulation of the Lot, roadways, and sidewalks.

6. Review Procedures

The ZBA shall evaluate each application based on the following respective Review Criteria.

a. ADU Site Review Procedures

For uses outlined in § III-M.4.c of this Bylaw, the following public review procedures shall be followed.

- i. The ADU Site Review shall be posted on a public meeting agenda.
- ii. Notice of the public meeting shall be sent to abutters within three hundred (300) feet of the boundaries of the Lot.
- iii. A decision shall be rendered within thirty-five (35) days of the first public meeting.

b. ADU Special Permit Procedures

For uses outlined in § III-M.4.d of this Bylaw, the review of such application shall comply with § VI-DD.1.e of these Zoning Bylaws.

Art. 20, Fall ATM 10/24/2024

The main motion under Article 25 passed by a 2/3rds vote (84/6/2).

ARTICLE 26: Amend Zoning Map: 0 Worcester Street (Assessor Map 23, Lot 69A)

To see if the Town will vote to amend the Natick Zoning Map by rezoning 0 Worcester Street (Assessor Map 23, Lot 69A) from Residential Single A (RSA) to Commercial – II (C-II) Zoning District; or otherwise act thereon.

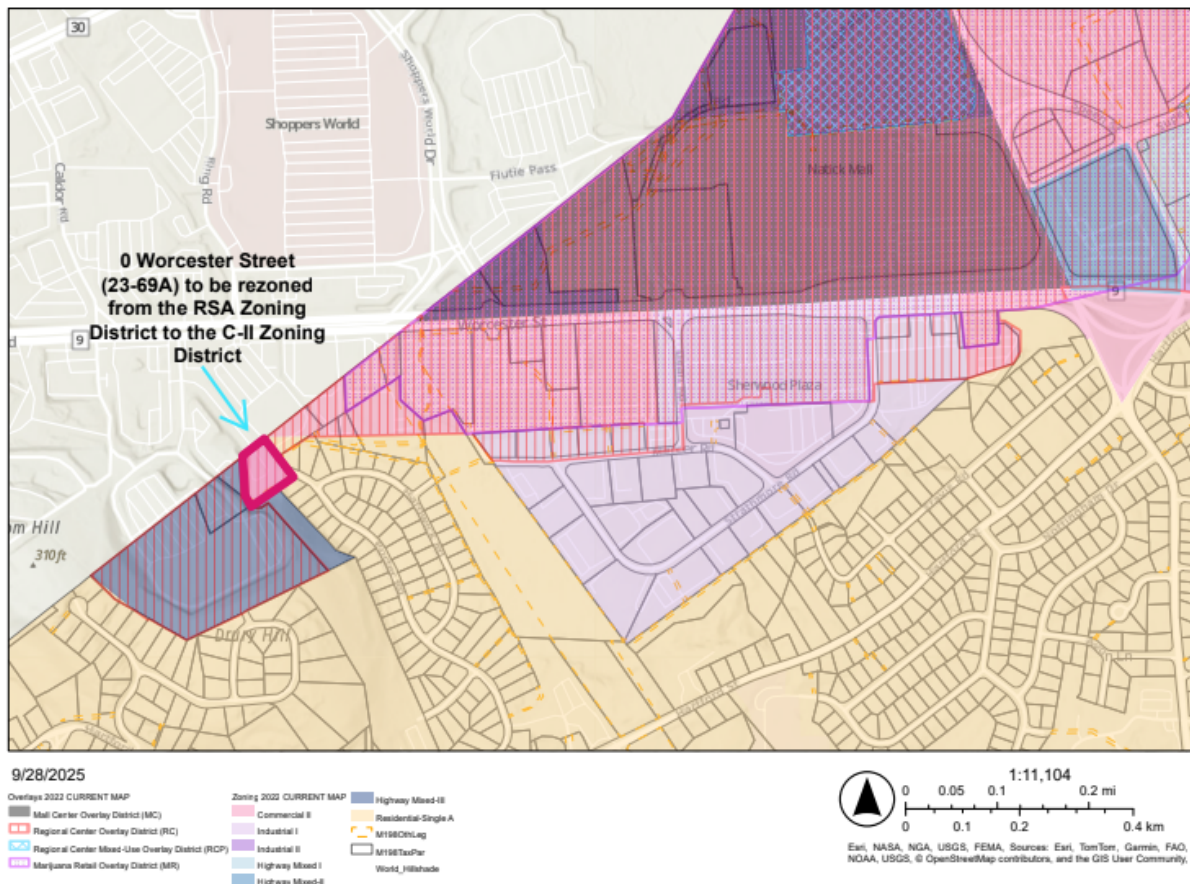
FINANCE COMMITTEE RECOMMENDATION

The Finance Committee took the following action:	RECOMMENDATION:	Refer to Sponsor
	QUANTUM OF VOTE:	9-4-0
	DATE VOTED:	9/30/2025

MOTION (Requires a 2/3rds Vote)

Moved by Cody Jacobs, seconded by Todd Gillenwater that the Town vote to amend the Natick Zoning Map by rezoning 0 Worcester Street (Assessor Map 23, Lot 69A) from Residential Single A (RSA) to Commercial – II (C-II).

Article 26: Amend Zoning Map - 0 Worcester Street



The motion to refer back to the sponsor passed by a 2/3rds vote (92/1/0).

ARTICLE 30: Charter and By-Law Review Committee Report and Extension

Christine Weithman, Secretary of the Charter & Bay-Law Review Committee spoke about the work of the committee and noted that \$50,068.25 would be returned to the general fund at the conclusion of this Town Meeting.

- **Town Moderator Jeff Alderson to a moment to thank** Jeff Horan and the entire team from Option Technologies and their management of the electronic voting system, Maya Allen from the Town Clerk's office for running projection.

- Todd Gillenwater, and the Finance Committee for the production of the recommendation book and incredible attention to detail, ensuring all members have clear information about each order of business.
- All of the presenters from Town Administration and Sponsors of articles for getting me their materials in advance and delivering great information to Town Meeting.
- Randy Brewer and the entire team at Natick Pegasus for the audio support, and enabling folks to view Town Meeting from home.
- Our pages from Natick High School who kept the microphones moving and ensured that all members wishing to speak were heard.
- Natick Public School facilities staff for hosting us at Kennedy Middle School and ensuring a fast setup and tear down every night.
- Andrew Ghobrial and the staff from the Town Clerk's office for ensuring a smooth check-in process.
- And lastly to all Town Meeting members - Thank you for helping me to master this role, raising relevant points to keep us on track, and your professional courtesy for and lively debate with other members.

ARTICLE 31: By-Law Changes Articles 81, 22 and a New Bylaw Article

To see what actions the town will take to amend the Bylaws of the Town with regard to:

Article 81 Chemical Storage Tanks and Systems of the By-Laws:

To see what action the town will take regarding Article 11 Town Clerk of the By-Laws:

- 1) add "propane", "underground propane tanks", in Section 2a Applicability and elsewhere to provide for regulation of underground propane tanks and pads for above ground propane tanks to protect drainage areas, septic areas, wetlands and similar areas and
- 2) add exceptions for "propane" in Sections 6(e), 9(c), 10(a) or other sections to provide that such propane tanks not be subject to fuel monitoring, inventory control and reporting as may be required for chemical tanks and other underground or above ground fuel storage tanks;

Article 22 Town Counsel and New By-Law Section

- 3) "i) Add a new Article to the By-Laws consistent with Article 2 Section 11 (e) of the charter and any other relevant provision of the charter or general laws i) to establish a standing committee for and or of town meeting to study review and report on zoning bylaw changes in advance of town meeting action and to determine the composition, method of appointment, term, powers and duties of such committee and/or ii) amend Article 22 of the By-Laws to require and to provide for the appointment of legal counsel with specialized knowledge in zoning and land use matters, to provide for the method of appointment, qualifications, powers and duties of such

counsel including but not limited to advising the representative town meeting, advisory committees of town meeting, the planning board and/or town moderator; or otherwise act thereon.

FINANCE COMMITTEE RECOMMENDATION

The Finance Committee took the following action:	RECOMMENDATION:	A: Favorable
		B: No Recommendation
	QUANTUM OF VOTE:	A: 13-0-0
		B: 6-7-0
	DATE VOTED:	9/16/2025

MOTION (Requires a Majority Vote)

Motion A for Changes to By-Law Article 81 Chemical Storage Tanks and Systems

Moved by Cody Jacobs, seconded by Todd Gillenwater that the Town vote to amend Article 81 of the By-Laws by: adding the words “The word ‘fuel’ in the term ‘underground fuel’ shall be deemed to include propane unless otherwise excepted herein.” at the end of Section 2 (a) so that Section 2 now reads:

“Section 2 Applicability

a. This By-Law shall apply to all underground fuel or chemical storage tanks and systems. The word ‘fuel’ in the term ‘underground fuel’ shall be deemed to include propane unless otherwise excepted herein.

b. Storage systems in service at the time of the approval of this By-Law shall be brought into compliance with the terms of this By-Law within ninety days of its approval.”

And by adding the words “This subsection 5 (a) (1) shall not apply to underground propane tanks.” at the end of Section 5 (a) (1) such that Section 5 (a) (1) now reads:

“Section 5 Tank Regulations

a) Every owner of an underground fuel or chemical storage tank and system shall file with the Board of Health, the size, type, age and location of each tank and/or system and the type of material stored, on or before ninety days after the approval of this By-Law.

1) Thereafter, every owner of a tank and system installation shall comply with the provisions of Section 5A, hereof on or before January 1st of each succeeding year.

“This subsection 5 (a) (1) shall not apply to underground propane tanks.”

And by adding a new subsection 6 (f) as follows:

“f. Subsections 6 (c) , (d) and (e) of this Section 6 shall not apply to underground propane tanks.”

And by adding a new subsection i as follows

“i. The provisions of subsection 8 (a) (1) and 8 (c) above shall not apply to underground propane tanks.”

And by adding to Section 9 Tank Testing and Removal a new subsection (c) as follows:

“ c) This Section 9 will not apply to underground propane tanks.”

And by adding to (c) as follows:

“ c) This Section 10 will not apply to underground propane tanks.”

Motion A under Article 31 passed by a majority vote (91/1/0).

Motion B: Amending By-Law Article 22 Town Counsel

No action moved by Todd Gillenwater, seconded by Rich Sidney that the town vote to amend Article 22 of the By-Laws by adding a new section 9 as Follows;

“Section 9: Special Zoning Advisory Counsel

a. The Select Board, or other appointing authority as provided below, shall annually appoint special zoning advisory counsel who shall be legal counsel with specialized knowledge and experience in zoning and land use matters, including but not necessarily be limited to relevant Massachusetts General Laws and case law. In addition to these qualifications said counsel shall be responsible for becoming and remaining fully knowledgeable about the Town’s Zoning By-Law. Said counsel shall be an independent contractor to the town and may be either associated with or unassociated with Town Counsel.

b. Said counsel shall assist and advise i) the Planning Board (including their staff support), ii) the Finance Committee, iii) any standing committee created by representative Town Meeting to review zoning articles and motions, iv) any special zoning study committee of Town Meeting, and v) the Town Moderator if any such enumerated parties request and/or require such assistance or advice concerning proposed changes to the Town’s Zoning By-Laws. Such advice or assistance 1) may consist of analysis, drafting, review and /or explanation of proposed changes to the zoning bylaw and 2) shall be in addition to the role of town counsel. Said zoning advisory counsel shall answer such questions from members of the Representative Town Meeting as the Town Moderator may direct and may also recommend changes to the Planning Board and any committee, established by town meeting, having a responsibility with regard to proposed changes in the Town’s

Zoning By-Law.

c. After consideration of a recommendation, if any, that the Planning Board may timely make, such appointment by the Select Board shall be made at least 60 days prior to fiscal year end. In the event the Select Board does not so appoint such special zoning advisory counsel, the Planning Board shall appoint such counsel at least 30 days prior to fiscal year end. If the Planning Board does not so appoint such counsel, the Town Moderator shall make the appointment. The judgement and evaluation of the qualifications for appointing special zoning advisory counsel shall be the decision of the appointing authority.

No action moved by Todd Gillenwater, seconded by Rich Sidney. Motion passes by a majority hand vote.

A motion was made by Rich Sidney, seconded by Carol Gloff to dissolve Town Meeting. The motion passed by a majority hand vote. The meeting dissolved at 8:35 PM.

A record of the Fourth Session of
2025 Fall Annual Town Meeting
October 30, 2025

Andrew Ghobrial, Town Clerk

